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Case Number: 25TRCV02670 Hearing Date: August 26, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

PRODUCTION SERVICES INC.

, et al.;

Plaintiffs,

vs.

RIVIAN AUTOMOTIVE LLC

;

Defendant.

Case

No.:

25TRCV02670

Hearing

Date:

August

26, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFFS

PRODUCTIONS SERVICES INC. AND DANOVAN ROWLEY'S MOTION FOR DETERMINATION OF

ATTORNEY FEES AND COSTS UNDER SETTLEMENT AGREEMENT

MOVING PARTY: Plaintiffs,

Production Services Inc. and Danovan Rowley

RESPONDING

PARTY: Defendant,

Rivian Automotive, LLC

(1)

Plaintiffs

Production Services Inc. and Danovan Rowley's Motion for Determination of

Attorney Fees and Costs under Settlement Agreement is GRANTED in the reduced amount of \$16,142.29 pursuant to Civil Code section 1794, subdivision (d).

The Court considers the moving papers filed on July 14, 2026, the opposition filed on August 13, 2026, and the reply brief filed on August 19, 2026.

BACKGROUND

Factual Background

On August 11, 2025, plaintiffs

Production

Services Inc. and Danovan Rowley (collectively, "Plaintiffs") filed the Complaint against defendants Rivian Automotive, LLC ("Defendant") and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of the Song-Beverly Consumer Warranty Act and (2) Violation of the Federal Magnuson-Moss Warranty Act.

On April 7, 2026, the parties reached a settlement amounting to \$119,504.79.

(Declaration of Timothy Whelan ("Whelan Decl."), ¶ 5.) The settlement agreement designates Plaintiffs as the prevailing parties for the purposes of this motion. (Whelan Decl., ¶ 5.)

LEGAL STANDARD

Attorneys'

fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd.

(a)(10)(B).) In a lemon law action,

costs and expenses, including attorney's fees, may be recovered by a prevailing

buyer under the Song-Beverly Act and the Magnuson-Moss Warranty Act. (See Civ. Code, § 1794, subd. (d); see also 15

U.S.C. § 2310(d)(2).)

Civil Code

section 1794 provides: "If the buyer prevails in an action under this section,

the buyer shall be allowed by the court to recover as part of the judgment a

sum equal to the aggregate amount of costs and expenses, including attorney's

fees based on actual time expended, determined by the court to have been

reasonably incurred by the buyer in connection with the commencement and

prosecution of such action." (Civ. Code,

§ 1794, subd. (d).)

United

States Code section 2310 states: "If a consumer finally prevails in any action

brought under paragraph (1) of this subsection, he may be allowed by the court

to recover as part of the judgment a sum equal to the aggregate amount of cost

and expenses (including attorneys' fees based on actual time expended)

determined by the court to have been reasonably incurred by the plaintiff for

or in connection with the commencement and prosecution of such action, unless

the court in its discretion shall determine that such an award of attorneys' fees

would be inappropriate." (15 U.S.C. §

2310(d)(2).)

Thus, the

statutes include a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to the

"reasonableness" of any fee claim. (Code

Civ. Proc., § 1033.5, subd. (c)(5).) This

burden requires competent evidence as to the nature and value of the services

rendered. (Martino v. Denevi

(1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of

hours worked on a particular case is sufficient evidence to support an award of

attorney fees, even in the absence of detailed time records." (Ibid.)

A

plaintiff's verified billing invoices are prima facie evidence that the costs,

expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167

Cal.App.3d 677, 682.) "In challenging

attorney fees as excessive because too many hours of work are claimed, it is

the burden of the challenging party to point to the specific items challenged,

with a sufficient argument and citations to the evidence. General arguments that fees claimed are

excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230

Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California

Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that

result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California

State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In

determining a reasonable attorney fee, the trial court begins with the

lodestar, i.e., the number of hours reasonably expended multiplied by the

reasonable hourly rate. (Warren v.

Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on

factors specific to the case in order to fix the fee at the fair market value

of the legal services provided. (Ibid.)

The factors that courts look at to

determine if a multiplier is reasonable are: "(1) the novelty and difficulty of

the questions involved, and the skill displayed in presenting them; (2) the

extent to which the nature of the litigation precluded other employment by the

attorneys; (3) the contingent nature of the fee award" and (4) the success

achieved. (Serrano v. Priest

(1977) 20 Cal.3d 25, 49 (Serrano).)

No specific findings

reflecting the court's calculations are required. The record only needs to show that the

attorney's fees were awarded according to the "lodestar" or "touchstone"

approach. The court's focus in

evaluating the facts should be to provide a fee award reasonably designed to

completely compensate attorneys for the services provided.¿ The starting point

for this determination is the attorney's time records. (Horsford v. Board of Trustees of Calif.

State Univ. (2005) 132 Cal.App.4th 359, 395-397 [verified time records

entitled to credence absent clear indication they are erroneous].) However, California case law permits fee

awards in the absence of detailed time sheets. (Sommers v. Erb (1992) 2

Cal.App.4th 1644, 1651; Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th

1794, 1810; Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th

99, 103.) An experienced trial judge is

in a position to assess the value of the professional services rendered in his

or her court. (Serrano, supra,

20 Cal.3d 25 at p. 49.)

DISCUSSION

It is undisputed that

Plaintiffs are the prevailing parties in this action and are therefore entitled

to attorneys' fees, costs, and expenses pursuant to Civil Code section 1794,

subdivision (d), and United States Code section 2310, subdivision (b)(2). (Motion,

pp. 2:16-3:5.) Plaintiffs move for a

total award of \$19,236.29, which encompasses (1) \$15,470.00 in attorneys' fees, (2) a 20% multiplier amounting to \$3,094.00, and (3) \$672.29 in costs and expenses. (Motion, pp. 1:7-10, 7:16-18.) Upon reviewing the reasonableness of the requested fees, the Court has determined that a more appropriate award is \$16,142.29.

However, before beginning its

analysis, the Court notes that Defendant has submitted Exhibit A as a list of proposed reductions. (Declaration of Donna

Hooper ("Hopper Decl."), ¶ 2, Exh. A.)

As Plaintiffs aptly point out, "[D]efendant improperly attempted to

bypass the page limitation for its opposition by tacking on three and a half

more pages of single-spaced, small-font complaints in its Exhibit A. Not only does the exhibit represent an

improper expansion of the opposition, but it also is devoid of any evidence or

authority." (Reply, p. 10:1-4.) For these reasons, the Court will not

consider the reductions proposed solely in Exhibit A but will take into account

the reductions suggested in Defendant's opposition brief.

Reasonableness of the Hourly Rates

Plaintiffs request the hourly

rates detailed in the following table. (Whelan

Decl., ¶¶ 1, 8-9, 15, Exh. 1; Declaration of Mark Romano ("Romano Decl."), ¶¶ 1-2.)

Name

Position

Years of Experience

2025 Hourly Rate

2026 Hourly Rate

Timothy Whelan

Partner

17

\$600.00

\$600.00

Mark Romano

Attorney

34

\$700.00

\$700.00

“Under our precedents, the unadorned lodestar reflects the general

local hourly rate for a fee-bearing case; it does not include any

compensation for contingent risk, extraordinary skill, or any other factors a

trial court may consider under Serrano III.” (Ketchum

v. Moses (2001) 24 Cal.4th

1122, 1139, internal citation and quotations omitted (Ketchum).) “It has long been recognized, however, that

the contingent and deferred nature of the fee award in a civil rights or other

case with statutory attorney fees requires that the fee be adjusted in

some manner to reflect the fact that the fair market value of legal services

provided on that basis is greater than the equivalent noncontingent hourly

rate. (*Ketchum v. Moses*, *supra*,

24 Cal.4th at pp. 1132–1133, 104 Cal.Rptr.2d 377, 17 P.3d 735.) ‘ “A lawyer who both bears the risk of not

being paid and provides legal services is not receiving the fair market value

of his work if he is paid only for the second of these functions. If he is paid no more, competent counsel will

be reluctant to accept fee award cases.” ‘ (*Id.* at p. 1133, 104 Cal.Rptr.2d 377,

17 P.3d 735, quoting with approval from Leubsdorf, *The Contingency Factor in*

Attorney Fee Awards (1981) 90 Yale L.J. 473, 480.) The contingency adjustment may be made at the

lodestar phase of the court’s calculation or by applying a multiplier to the

noncontingency lodestar calculation (but not both). (*Ketchum v. Moses*, *supra*, 24

Cal.4th at pp. 1133–1134, 104 Cal.Rptr.2d 377, 17 P.3d 735.)” (*Horsford v. Board of Trustees of*

California State University (2005) 132 Cal.App.359, 394-395, emphasis added

(*Horsford*).)

“In determining hourly rates,

the court must look to the ‘prevailing market rates in the relevant community.’ [Citation.] The rates of comparable attorneys in the forum

district are usually used. [Citation.] In making its calculation, the court should

also consider the experience, skill, and reputation of the attorney requesting

fees. [Citation.] The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate. [Citation.] Affidavits of the plaintiffs' attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate. [Citation.]”

(Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009, internal citations and quotations omitted.)

Defendant contends that the requested hourly rates are excessive on the grounds that they are contingent hourly rates rather than reflective of noncontingent market rates. (Opp., pp. 8:14-9:11.) Furthermore, Defendant alleges that Plaintiffs have not provided evidence of the noncontingent market rates typically associated with lemon law cases, as mandated by Ketchum. (Opp., pp. 9:12-10:13.) The Court, however, finds this argument unpersuasive. As previously indicated,

the lodestar calculation phase permits a contingency adjustment to account for the reality that the fair market value of legal services provided on a contingent basis generally exceeds the equivalent noncontingent hourly rate. (Horsford, supra, 132 Cal.App.359 at pp. 394-395.) Consequently,

the Court may award Plaintiffs the prevailing hourly rate for private attorneys in the community who engage in similar contingent litigation. There is no requisite to consider noncontingent market rates, including those charged by Defendant's legal

counsel, in determining the appropriate hourly rates for this case.

In the present case, Whelan and

Romano's declarations present a detailed account of their qualifications and

experience. (Whelan Decl., ¶¶ 1, 8-11,

15-16, Exhs. 1-10; Romano Decl., ¶¶ 1-5.)

With reference to these declarations and the Court's own familiarity with

the billing rates of Los Angeles-area counsel in similar lemon law cases, the

Court finds that the attorneys' rates are reasonable due to their experience

and qualifications.

Reasonableness of the Hours Incurred

Template Complaint

Defendant contends that the

Court should decline to award \$840.00 in attorney's fees associated with drafting

the Complaint. (Opp., p. 14:7-12.) Defendant contends that, since Plaintiffs'

counsel utilizes templated complaints, the necessary changes should "not take

more than .4 hours to accomplish including the supporting documents[.]" (Opp., p. 14:10-11.) The Court disagrees.

The Court finds that the 1.4

hours allocated for drafting the Complaint is appropriate, as the unique

circumstances surrounding each case necessitate a thorough evaluation of the

pertinent facts and the applicable causes of action against Defendant. Consequently, the Court finds that the hours

claimed are reasonable and declines to reduce the requested attorney's fees on this

ground.

Discovery

Defendant contends that the

Court should decline to award \$1,140.00 in attorneys' fees associated with discovery. (Opp., p. 14:13-26.) Defendant argues that discovery was

unnecessary because it offered to repurchase the vehicle, and that Plaintiffs'

counsel obstructed settlement discussions by failing to provide certain

financial documents. (Opp., p. 14:14-23.) Furthermore, Defendant argues that the

billing rates for discovery are excessive, claiming that Plaintiffs employed

templated discovery requests that a paralegal could have easily modified. (Opp., p. 14:23-25.) The Court disagrees with both arguments.

First, the Court observes that

while Defendant extended an offer to repurchase the vehicle, a specific

monetary amount was not provided. (Hopper

Decl., ¶ 5.) Additionally, as emphasized

by Plaintiffs, "a buyback is not the sole relief available under the

Song-Beverly Act. Instead, a consumer

may recover a civil penalty for a defendant's willful failure to comply with

the Act. Cal. Civ. Code § 1794(c). As a

result, discovery was needed to evaluate any offer from defendant and determine

whether defendant was liable for a civil penalty, in addition to obtaining evidence and information for evaluating and refuting defendant's 46 affirmative defenses and proving Plaintiffs' claims at trial. (Id.)." (Reply, p. 8:18-23.) Thus, pursuing discovery was indispensable for a comprehensive evaluation of the case, irrespective of Defendant's potential objections to the discovery requests.

Regarding the assertion that

the billing rates are excessive because a paralegal could have conducted edits

to the templated discovery requests, the Court similarly disagrees. Defendant has provided a set of discovery

requests filed in this case for comparative analysis. (Hopper Decl., ¶ 8, Exhs. D1-D2.) The Court notes that the discovery requests

vary due to the distinct factual circumstances of each case. Therefore, it is reasonable for attorneys

with greater experience and legal expertise than a paralegal to allocate time

to make the necessary modifications to the templated discovery.

Consequently, the Court finds

that the hours claimed are reasonable and declines to reduce the requested

attorneys' fees on this ground.

Fee Motion

Defendant contends that the

Court should decline to award \$2,110.00 in attorney's fees associated with this

fee motion. (Opp., pp. 14:27-15:5.) Specifically, Defendant argues that "6.5

hours to review this opposition and prepare a reply and appear at the hearing

is excessive and should be reduced to 3.0 hours." (Opp., p. 14:4-5.) The Court disagrees.

Defendant filed a lengthy

opposition, which necessitated over six hours of work for Plaintiffs' counsel

to review the opposition brief and draft the reply brief. (Supplemental Declaration of Timothy

Whelan ("Suppl. Whelan Decl."), ¶ 9.) The

Court finds that Plaintiffs' counsel will require at least an additional thirty

minutes to prepare for and attend the hearing on this motion. (Suppl. Whelan Decl., ¶ 9.) Consequently,

the Court finds that the hours claimed are reasonable and declines to reduce

the requested attorney's fees on this ground.

Intake, Emails, Administrative, and Clerical

Work

Defendant contends that the

Court should decline to award \$1,440.00 in attorneys' fees associated with

various tasks that are allegedly clerical and administrative in nature, arguing

that such activities are either non-billable, inflated, or should be

compensated at a reduced billing rate. (Opp.,

p. 15:6-19.) The Court disagrees.

Defendant asserts, "Clerical

tasks - calendaring, preparing proofs of service, internal filing, preparing

binders for a hearing, and scanning, reserving hearing dates are examples of tasks that have been found to be purely clerical and thus non-compensable or compensable at a reduced billing rate. (Save

Our Uniquely Rural Community Environment v. County of San Bernardino (2015)

235 Cal.App.4th 1179, 1187.)" (Opp., p.

15:10-15.) The Court notes that this

interpretation of the Court of Appeal's ruling is somewhat inaccurate. The Court of Appeal did not categorically

classify these tasks as non-compensable; rather, it indicated that a trial

court may determine that the billing rates and hours are excessive in relation

to these activities. (Save Our

Uniquely Rural Community Environment v. County of San Bernardino (2015) 235

Cal.App.4th 1179, 1187.)

Upon thorough review of Defendant's

proposed reductions, the Court does not categorize these tasks as clerical or

administrative. Furthermore, the Court

finds the time allocated to these activities to be reasonable. Consequently, the Court finds that the hours

claimed are reasonable and declines to reduce the requested attorneys' fees on

these grounds.

Loadstar Multiplier

Plaintiffs contend that their

legal counsel should be granted a lodestar multiplier of 20%. (Motion, pp. 6:17-7:18.) They assert that such a multiplier is warranted due to “the excellent result obtained, the skill of counsel, the risk of taking this case on a contingent basis, and the delay in payment of one year since the beginning of this case in August 2025.” (Motion, p. 7:16-18.) The Court disagrees.

The factors that courts look

at to determine if a multiplier is reasonable are: “(1) the novelty and

difficulty of the questions involved, and the skill displayed in presenting

them; (2) the extent to which the nature of the litigation precluded other

employment by the attorneys; (3) the contingent nature of the fee award” and

(4) the success achieved. (Serrano,

supra, 20 Cal.3d at p. 49.) Nonetheless,

courts must not consider extraordinary skill and the other Serrano

factors to the extent these are already included in the lodestar. (Ketchum v. Moses (2001) 24 Cal.4th

1122, 1138-1139.) “[A] trial court

should award a multiplier for exceptional representation only when the quality

of representation far exceeds the quality of representation that would have

been provided by an attorney of comparable skill and experience billing at the

hourly rate used in the lodestar calculation.

Otherwise, the fee award will result in unfair double counting and be

unreasonable.” (Id. at p. 1139.)

The Court finds that a

lodestar multiplier is not appropriate for this case, given the circumstances. This is a straightforward lemon law case, and

there is nothing to suggest that it involves novel issues or that the quality

of representation exceeded what would typically be provided by attorneys of

comparable skill and experience billing at similar rates. Furthermore, there is no indication that the

settlement was "excellent."

Additionally, Plaintiffs do

not argue that their counsel was unable to take on more cases. While Plaintiffs assert that their counsel

accepted the case solely on a contingency basis and experienced delayed

payment, the Court believes that these considerations and the associated risks

are already accounted for in the lodestar amount. This is because the substantial hourly rates

approved by the Court reflect those typically charged for lemon law cases

pursued on a contingency basis.

Based on the foregoing, the

Court declines to grant a lodestar multiplier.

Costs and Expenses

Plaintiffs seek reimbursement

in the amount of \$672.29 for incurred costs and expenses. (Motion, pp. 7:19-8:18.) In support of this request, Plaintiffs have included

a memorandum of costs. (Whelan Decl., ¶ 17,

Exh. 11.) The costs appear to be

reasonable on their face, and Defendant did not submit any objections to the

requested sum. Accordingly, the Court

concludes that the requested amount is appropriate.

Accordingly, the Court GRANTS

Plaintiffs' motion in the reduced amount of \$16,142.29 (\$19,236.29- \$3,094.00).

ORDERS

1) Plaintiffs

Production Services Inc. and Danovan Rowley's Motion for Determination of

Attorney Fees and Costs under Settlement Agreement is GRANTED in the reduced

amount of \$16,142.29.

2) Plaintiffs

are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 26, 2026

Tamara

Hall

Judge

of the Superior Court